

Tax Map and Parcel No.: 335-8.00-36.07 (Units 801-810)

Prepared by and Return to:

Jonathan E. Horner, Esquire
20184 Phillips Street
Rehoboth Beach, DE 19971

FIFTH AMENDMENT TO
RESIDENTIAL HOUSING RESTRICTION FOR DUTCHMAN'S HARVEST

THIS FIFTH AMENDMENT to the Residential Housing Restriction for Dutchman's Harvest (the "Amendment") is made as of the 8th day of June, 2026, by LEWES ATTAINABLE HOUSING, LLC, a Delaware limited liability company, having an address of 18949 Coastal Highway, Unit 301, Rehoboth Beach, DE 19971 (the "Declarant").

RECITALS

WHEREAS, Declarant previously established the Residential Housing Restriction for Dutchman's Harvest (the "Condominium") pursuant to that certain Residential Housing Restriction for Dutchman's Harvest dated the 26th day of June, 2025 and recorded in the Office of the Recorder of Deeds in and for Sussex County, State of Delaware ("Recorder's Office") in Deed Book 6326, Page 90, together with all amendments thereto, (collectively the "Restriction"); with respect to certain property owned by the Declarant and located in Lewes, Sussex County, State of Delaware, as described in Exhibit A of the Restriction.

WHEREAS, Declarant desires to amend the Restriction to include additional condominium units to be bound by the terms and conditions of the Restriction.

WHEREAS, on or before the recordation of this Amendment in the Recorder's Office, Declarant has filed in the Recorder's Office that certain Amended Declaration Plan, Amendment No. 5, Condominium Declaration Plan Building 8 Dutchman's Harvest, Lewes and Rehoboth Hundred, Sussex County, Delaware, prepared by Davis, Bowen & Friedel, Inc. dated April 28, 2026 in Plot Book 472, Page 19 (the "Unit 801-810 inclusive Declaration Plan") and Declarant has filed in the Recorder's Office that certain Fifth Amendment to the Declaration dated 6-8-26 in Book 6520, Page 322 to create Units 801 through 810, inclusive.

WHEREAS, all capitalized terms not defined herein shall have the respective meanings set forth in the Restriction as amended by this Amendment.

NOW, THEREFORE, witnesseth:

1. Ratification. The Declarant ratifies and restates the following:

(A) The Units that are the subject of this Amendment are subject to the purposes and restrictions set forth in the Restriction.

(B) The foregoing Recitals are incorporated herein and made a part of this Amendment.

2. Amendment to Restriction. The Restriction is hereby amended to include additional Units, specifically Units 801 through 810, inclusive. These Units shall be subject to all terms, conditions, covenants, and restrictions set forth in the Restriction. For the avoidance of doubt, the definition of "Unit" is hereby deleted in its entirety and replaced with:

"Unit" means a Unit as defined by 25 Del. C. §81-103(48) and as created pursuant to the Master Declaration for Dutchman's Harvest Condominium. There will be a total of 140 Units built within the Property and as of this date, the Units constructed and bound by this Declaration include Units 101-110, inclusive, Units 201-210, inclusive, Units 301 through 310, inclusive, Units 601 through 610, inclusive and Units 701 through 710, inclusive and 801 through 810, inclusive.

3. Ratification of Declaration. The Restriction remains in full force and effect, as amended and modified by this Amendment.

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IN WITNESS WHEREOF, the Declarant has hereunto set its hand and seal the day and year first above written.

Signed, Sealed And Delivered
In The Presence Of:

LEWES ATTAINABLE HOUSING, LLC, a
Delaware limited liability company

Haley Wilson
Witness

By: Jaime I. Zolper (Seal)
Name: Jaime I. Zolper
Title: Authorized Signatory

STATE OF DELAWARE)
) SS
SUSSEX COUNTY)

BE IT REMEMBERED that on this 8th day of June, 2026, came before me, the Subscriber, a Notary Public in and for the State and County aforesaid, Jaime I. Zolper, as Authorized Signatory of Lewes Attainable Housing, LLC, a Delaware limited liability company, on behalf of said company in its capacity as party to this Indenture, known to me personally to be such, and acknowledged this Indenture is the act and deed of such company.

GIVEN under my Hand and Seal of office, the day and year aforesaid.

Ann Margaret Donato (Seal)
Notary Public or Notarial Officer

